

Bayer HealthCare Pharmaceuticals Inc. v. SABA Ilac Sanayi ve Ticaret A. S.

The likely technical center is the validity of Bayer's finerenone compound patent, not whether a proposed bioequivalent generic contains finerenone. The public complaint analysis reports anticipation and obviousness theories based on U.S. Patent No. 8,404,709, plus written-description, enablement, and indefiniteness theories. Expert work will likely compare the earlier disclosure with the '180 patent's genus and finerenone-specific claims, reconstruct the medicinal-chemistry choices as of the 2007 priority date, assess stereochemical identity and analytical proof, and evaluate whether any asserted pharmacologic advantages are commensurate with the claimed invention.

Independent preliminary research based on public information.

FILED	FORUM	DOCKET	MATTER
2026-08-21	U.S. District Court for the District of Delaware	1:26-cv-01073	Patent - Abbreviated New Drug Application (Anda)

Prepared 2026-08-25. No attorney or expert contacted. Availability, interest, compensation, and conflicts not checked.

Public filing, likely recipient, and technical frame

CAPTION	Bayer HealthCare Pharmaceuticals Inc. et al. v. SABA Ilac Sanayi ve Ticaret A. S.
FORUM / DOCKET	U.S. District Court for the District of Delaware / 1:26-cv-01073
FILED / TYPE	2026-08-21 / Patent - Abbreviated New Drug Application (ANDA)
PUBLIC DOCKET	Open docket

VERIFIED PUBLIC RECORD

The public docket identifies Bayer HealthCare Pharmaceuticals Inc., Bayer Pharma Aktiengesellschaft, and Bayer Aktiengesellschaft as plaintiffs and SABA Ilac Sanayi ve Ticaret A. S. as defendant. It classifies the action as an ANDA patent case, records the August 21, 2026 complaint, and identifies U.S. Patent No. 8,436,180 in the report to the Commissioner of Patents and Trademarks. The docket names Alexandra M. Joyce and Daniel M. Silver of McCarter & English as counsel for the Bayer plaintiffs. A public complaint analysis reports that SABA submitted ANDA No. 220708 for generic finerenone tablets in 10 mg and 20 mg strengths and challenged the '180 patent based on anticipation and obviousness over U.S. Patent No. 8,404,709 and under 35 U.S.C. section 112.

LIKELY RESEARCH PURCHASER

Daniel M. Silver - Outside counsel, McCarter & English, LLP; Wilmington Office Co-Managing Partner. Analytical inference: the exact docket names Silver for the Bayer plaintiffs, and his official biography describes substantial representation of innovator pharmaceutical companies in Hatch-Waxman litigation. This does not establish internal staffing or purchasing responsibility.

dsilver@mccarter.com - publicly listed on the [official firm biography](#); not inferred.

TECHNICAL FRAME

The likely technical center is the validity of Bayer's finerenone compound patent, not whether a proposed bioequivalent generic contains finerenone. The public complaint analysis reports anticipation and obviousness theories based on U.S. Patent No. 8,404,709, plus written-description, enablement, and indefiniteness theories. Expert work will likely compare the earlier disclosure with the '180 patent's genus and finerenone-specific claims, reconstruct the medicinal-chemistry choices as of the 2007 priority date, assess stereochemical identity and analytical proof, and evaluate whether any asserted pharmacologic advantages are commensurate with the claimed invention.

Secondary-source limitation: The complaint analysis is a secondary public source, not a substitute for the filed complaint, SABA's Paragraph IV notice, the complete prosecution histories, expert reports, or discovery. The docket does not identify asserted claims, and no conclusion is drawn on infringement, validity, enforceability, claim scope, or commercial outcome. [Open public synopsis](#)

REPORTED ASSERTED PATENTS

[U.S. Patent No. 8,436,180](#)

Questions likely to require expert input

This issue map is a research plan, not a legal conclusion. The filed complaint, patent exhibits, intrinsic record, and discovery must control.

01 Does the earlier '709 patent expressly or inherently disclose the compound, genus, or stereochemical species claimed in the '180 patent?

A medicinal chemist can map each disputed structural limitation, substituent choice, stereochemical configuration, and any claimed species against the earlier disclosure without treating a broad genus as an automatic disclosure of every member.

Potential evidence: Claim charts; complete '709 and '180 specifications and examples; prosecution histories; priority documents; compound tables; stereochemical drawings; synthesis and analytical records; contemporaneous medicinal-chemistry literature

02 Would a skilled medicinal chemist have selected and combined the relevant prior-art teachings with a reasonable expectation of obtaining finerenone or the claimed class?

Obviousness will likely turn on the state of mineralocorticoid-receptor antagonist design in 2007, the predictability of structure-activity relationships, lead selection, substituent changes, stereochemical resolution, and whether the asserted path is hindsight-driven.

Potential evidence: Pre-2007 patents and papers; lead-series and structure-activity data; receptor potency/selectivity assays; toxicity and pharmacokinetic data; inventor records; failed compounds and alternative scaffolds; expert reconstruction of ordinary skill

03 What exactly is the claimed stereochemical and chemical identity, and how would a skilled person establish it?

The '180 patent includes structural and enantiomer-specific disclosure. A synthetic and analytical chemist can address stereoselective preparation, racemate resolution, absolute configuration, purity, salts, and whether the documentary record supports identity at the relevant date.

Potential evidence: Synthetic schemes and laboratory notebooks; chiral HPLC or other chromatographic data; NMR, mass spectrometry, optical rotation, and crystallography; reference standards; batch certificates; expert replication if authorized

04 Does the '180 specification provide adequate written description and enablement across the scope of any asserted genus or species claims?

The inquiry may require separating representative disclosure from a research plan and assessing structural diversity, predictability, working examples, synthesis burden, and the amount of experimentation required across the claimed scope.

Potential evidence: Claim scope and specification; representative species and examples; synthesis success/failure records; common general knowledge in 2007; structure-activity predictability; expert analysis of quantity and nature of experimentation

Questions likely to require expert input

05 Would a skilled person understand the boundaries of any disputed structural or functional claim terms with reasonable certainty?

An organic or medicinal chemist may be needed to explain chemical nomenclature, Markush alternatives, stereochemical conventions, salts, substituent definitions, and whether the intrinsic record gives workable boundaries.

Potential evidence: Claim language; specification definitions; prosecution statements; IUPAC and field conventions; chemical drawings; examples at asserted boundaries; competing constructions

06 Are alleged selectivity, efficacy, safety, or other advantages unexpected and tied to what the asserted claims actually cover?

Rebuttal or secondary-considerations evidence may require connecting receptor pharmacology and clinical or preclinical results to the claimed compound rather than to formulation, dosing, patient selection, or later development work.

Potential evidence: MR binding and functional assays; off-target steroid-receptor panels; preclinical and clinical data; contemporaneous expectations; comparator data for spironolactone, eplerenone, and prior nonsteroidal candidates; funding and authorship records

Candidates 1-2 for further diligence

Ranked for preliminary research priority based on subject-matter fit, relevant public work, testimony, and visible diligence burden. This is not a retention recommendation.

01 Gunda I. Georg

Regents Professor, Robert Vince Endowed Chair, and Director of the Institute for Therapeutics Discovery and Development, University of Minnesota

TECHNICAL FIT

High-priority medicinal-chemistry and drug-discovery fit for compound-genus analysis, synthetic routes, stereochemistry, structure-activity relationships, and the knowledge of an ordinary medicinal chemist.

RELEVANT WORK

Her public profile identifies leadership in medicinal chemistry and therapeutics discovery, a pharmacy and medicinal-chemistry background, extensive drug-design and synthesis work, and service as co-editor-in-chief of the Journal of Medicinal Chemistry.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific expert report, deposition, trial testimony, or admissibility decision was located in the bounded public search.

POINTS FOR FURTHER DILIGENCE

Her public research is broad and not specifically focused on finerenone or mineralocorticoid receptors. Current institutional, patent, sponsor, editorial, and pharmaceutical relationships require full conflicts diligence.

[Source 1](#) | [Source 2](#)

[Draft email](#) | georg@umn.edu | [public email source](#)

02 Craig W. Lindsley

William K. Warren, Jr. Chair in Medicine, University Distinguished Professor, Director of Medicinal Chemistry, and Executive Director of the Warren Center for Neuroscience Drug Discovery, Vanderbilt University

TECHNICAL FIT

Strong medicinal-chemistry fit for lead optimization, compound selection, iterative synthesis, structure-activity relationships, and whether a proposed path from prior art reflects ordinary practice or hindsight.

RELEVANT WORK

Vanderbilt reports prior medicinal-chemistry leadership at Merck, six delivered preclinical development candidates, technology-enabled synthesis, and current leadership in academic drug discovery and the Journal of Medicinal Chemistry.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific expert report, deposition, trial testimony, or admissibility decision was located in the bounded public search.

POINTS FOR FURTHER DILIGENCE

His best-known programs concern neuroscience rather than finerenone or mineralocorticoid receptors. His industry history, consulting, patents, sponsors, and editorial roles create a substantial diligence workload.

[Source 1](#)

[Draft email](#) | craig.lindsley@vanderbilt.edu | [public email source](#)

Candidates 3-4 for further diligence

03 Jeffrey Aubé

Eshelman Distinguished Professor, Division of Chemical Biology and Medicinal Chemistry, UNC Eshelman School of Pharmacy

TECHNICAL FIT

Strong synthetic-organic and medicinal-chemistry fit for scaffold selection, stereochemical diversity, compound libraries, representative species, and the practical burden of making and testing a claimed chemical genus.

RELEVANT WORK

His public CV identifies leadership of drug-discovery and synthesis programs and long-running research in medicinal chemistry, organic synthesis, chemical methodology, and compound-library design.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific expert report, deposition, trial testimony, or admissibility decision was located in the bounded public search.

POINTS FOR FURTHER DILIGENCE

The public email source is an institutional CV posted in 2020, so current address and role should be reconfirmed before any authorized contact. His work is not specifically directed to MR antagonists or finerenone.

[Source 1](#) | [Source 2](#)

[Draft email](#) | jaube@unc.edu | [public email source](#)

04 Scott E. Denmark

Reynold C. Fuson Professor of Chemistry and Center for Advanced Study Professor, University of Illinois Urbana-Champaign

TECHNICAL FIT

Strong synthetic-organic fit for stereocontrol, reaction mechanisms, structure-reactivity-selectivity relationships, analytical interpretation, and stereochemical preparation of complex small molecules.

RELEVANT WORK

Illinois describes his research as invention and mechanistic study of synthetic reactions, asymmetric catalysis, stereoselectivity, and application of spectroscopic, crystallographic, computational, and machine-learning methods.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific expert report, deposition, trial testimony, or admissibility decision was located in the bounded public search.

POINTS FOR FURTHER DILIGENCE

His principal expertise is synthetic methodology rather than medicinal chemistry, finerenone, receptor pharmacology, or Hatch-Waxman practice; a pharmacology complement would likely be needed.

[Source 1](#) | [Source 2](#)

[Draft email](#) | sdenmark@illinois.edu | [public email source](#)

Candidates 5-6 for further diligence

05 Peter J. Fuller

Professor and Head, Steroid Receptor Biology Group, Hudson Institute of Medical Research

TECHNICAL FIT

High MR-specific fit for receptor structure-function, ligand-binding domains, ligand-selective activation, molecular modeling, and whether asserted pharmacologic behavior follows from compound structure.

RELEVANT WORK

Hudson identifies his group as internationally recognized for MR biology, including ligand-specific interdomain interactions, co-regulatory molecules, chimeric receptor studies, and molecular modeling of MR structure-function relationships.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific expert report, deposition, trial testimony, or admissibility decision was located in the bounded public search.

POINTS FOR FURTHER DILIGENCE

He is a receptor biologist, not a synthetic medicinal chemist, and would not by himself cover genus disclosure, organic synthesis, or stereochemical analytical proof. Institutional and pharmaceutical collaborations require diligence.

[Source 1](#) | [Source 2](#) | [Source 3](#)

[Draft email](#) | peter.fuller@hudson.org.au | [public email source](#)

06 Celso E. Gomez-Sanchez

Professor of Pharmacology and Toxicology and Professor of Medicine, University of Mississippi Medical Center

TECHNICAL FIT

Direct MR and aldosterone fit for receptor biology, steroid specificity, receptor assays, aldosterone synthesis, and interpretation of pharmacology relevant to selectivity and unexpected-results arguments.

RELEVANT WORK

UMMC lists longstanding NIH work on mineralocorticoids, hypertension, MR genomic and non-genomic actions, steroid-receptor shuttling, and development of MR antibodies, together with extensive publications on MR biology.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific expert report, deposition, trial testimony, or admissibility decision was located in the bounded public search.

POINTS FOR FURTHER DILIGENCE

His public work is primarily biological and clinical rather than synthetic medicinal chemistry or claim-scope analysis. The institutional profile's publication list is not fully current and should be supplemented with a current CV.

[Source 1](#)

[Draft email](#) | cgomez-sanchez@umc.edu | [public email source](#)

Candidates 7-8 for further diligence

07 John W. Funder

Distinguished Scientist, Hudson Institute of Medical Research

TECHNICAL FIT

Direct fit for the pharmacology and physiology of aldosterone and mineralocorticoid receptors, including receptor specificity, kidney effects, hypertension, heart failure, and comparison with steroidal MR antagonists.

RELEVANT WORK

Hudson reports more than forty years of aldosterone and MR research, more than 500 scientific papers, and foundational work on tissue specificity, receptor biology, hypertension, heart failure, and eplerenone.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific expert report, deposition, trial testimony, or admissibility decision was located in the bounded public search.

POINTS FOR FURTHER DILIGENCE

His fit is strongest for MR biology and objective pharmacologic evidence, not compound synthesis, Markush scope, or enablement. Publicly disclosed pharmaceutical-sector collaborations require careful conflicts review.

[Source 1](#)

[Draft email](#) | john.funder@hudson.org.au | [public email source](#)

08 Richard J. Auchus

James A. Shayman and Andrea S. Kevrick Professor of Translational Medicine and Professor of Internal Medicine and Pharmacology, University of Michigan

TECHNICAL FIT

Complementary fit for steroid biochemistry, aldosterone biosynthesis, adrenal pathways, and the biochemical context in which MR antagonists are evaluated.

RELEVANT WORK

Michigan identifies his research as steroid biochemistry and related disorders. His publications address adrenal steroidogenesis and biochemical pathways relevant to aldosterone production and steroid action.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific expert report, deposition, trial testimony, or admissibility decision was located in the bounded public search.

POINTS FOR FURTHER DILIGENCE

His expertise is more focused on steroidogenesis and endocrine disease than MR-antagonist medicinal chemistry, finerenone structure, or compound-patent validity. Clinical and sponsor relationships require review.

[Source 1](#) | [Source 2](#)

[Draft email](#) | rauchus@med.umich.edu | [public email source](#)

Candidates 9-10 for further diligence

09 Rajiv Agarwal

Professor Emeritus of Medicine, Indiana University School of Medicine; VA nephrologist

TECHNICAL FIT

Direct finerenone clinical fit for cardiorenal benefits, comparator evidence, patient outcomes, and nexus limits.

RELEVANT WORK

His publications include finerenone cardiovascular and kidney-outcome analyses and reviews of finerenone in cardiorenal medicine.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific expert report, deposition, trial testimony, or admissibility decision was located in the bounded public search.

POINTS FOR FURTHER DILIGENCE

He is not a medicinal chemist. Finerenone trial work with Bayer authors and sponsors creates material conflict and cross-examination diligence.

[Source 1](#) | [Source 2](#)

[Draft email](#) | ragarwal@iu.edu | [public email source](#)

10 Peter Rossing

Head of Clinical and Translational Research, Steno Diabetes Center Copenhagen; University of Copenhagen professor

TECHNICAL FIT

Direct finerenone clinical fit for diabetic kidney disease, cardiovascular outcomes, treatment context, and unexpected-advantage evidence.

RELEVANT WORK

His official profile describes translational diabetes leadership; he is corresponding author on a finerenone analysis across chronic kidney disease and type 2 diabetes.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific expert report, deposition, trial testimony, or admissibility decision was located in the bounded public search.

POINTS FOR FURTHER DILIGENCE

He is not a chemist. Finerenone trial and publication work, including Bayer-associated studies, creates pronounced conflict and bias diligence needs.

[Source 1](#) | [Source 2](#)

[Draft email](#) | peter.rossing@regionh.dk | [public email source](#)

Preliminary candidates; no conflicts or availability determination

- Run party, affiliate, counsel, inventor, funder, and technology conflicts.
- Confirm testimony history, exclusions, compensation, publications, patents, and deposition performance.
- Investigate licensing, grants, consulting, commercial interests, and prior technical positions.
- Confirm role fit, availability, and interest only after counsel authorizes outreach.

ONGOING MATTER-SPECIFIC RESEARCH

Flint Witness Research works in the post-filing window, turning pleadings and public technical records into issue maps, researched candidate slates, and diligence starting points as the case develops.

[Schedule a 15-minute conversation](#)

CORE SOURCES

Public docket: <https://dockets.justia.com/docket/delaware/dedce/1%3A2026cv01073/94339>

Official attorney biography and email: <https://www.mccarter.com/people/daniel-m-silver/>

Public technical context source: <https://ai-lab.exparte.com/case/dct/ded/1%3A26-cv-01073/doc/analysis/1>

LIMITATIONS

The complaint analysis is a secondary public source, not a substitute for the filed complaint, SABA's Paragraph IV notice, the complete prosecution histories, expert reports, or discovery. The docket does not identify asserted claims, and no conclusion is drawn on infringement, validity, enforceability, claim scope, or commercial outcome.

No attorney or expert was contacted. Availability, interest, compensation, conflicts, admissibility, and retention suitability were not checked.